

HEADNOTE

- “1. In the event of violations of orders under Art. 62 UPCA, a penalty payment can be imposed without further court enforcement order pursuant to Art. 82 para. 4 UPCA.*
- 2. The requirements for imposing penalty payments are exhaustively regulated in Art. 82 para. 4 UPCA; further enforcement requirements existing in the law of the contracting member states are not to be observed in this respect.*
- 3. Rule 118.8 of the Rules of Procedure does not apply, according to its clear wording ("The orders referred to in paragraphs 1 and 2 (a)..."; Art. 62 UPCA is not mentioned there), to orders under Art. 62 UPCA.”*

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP 4 108 782

Compositions and methods for analyte
detection

KEYWORDS

Penalty payments

Provisional measures

Art. 62 UPCA

Enforcement

Art. 82 UPCA

Article 62 Provisional and protective measures

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to compositions and methods for analyte detection. According to the headnotes of the decision, the UPC can impose penalty payments for violations of orders under Article 62 UPCA without requiring a separate enforcement court order. The requirements for imposing such penalty payments are exhaustively set out in Article 82 paragraph 4 UPCA, meaning that additional enforcement requirements under national laws of member states do not apply in this context. Rule 118.8 of the Rules of Procedure does not govern orders issued under Article 62 UPCA, as that rule explicitly applies only to other specified orders and does not reference Article 62.